

Nagendra Singh Gautam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 November 2025 · WRIT - C No. - 22116 of 2025 · **Writ disposed of; petitioner to represent to the MD against the Clause 4.9 estimate; MD to decide after hearing.**

HEADNOTE

Where a new-connection applicant challenges a Clause 4.9 estimate calculated at Rs.70 per square foot after a February 2025 amendment, contending that the Permanent Lok Adalat had directed deposit at the pre-amendment Rs.35 rate applicable on the date of application, and that that rate question has not been adjudicated, the writ court will not decide which rate applies. The petitioner may represent to the Managing Director of the supply company; the MD shall consider and decide strictly in accordance with law after notice and hearing. If the grievance is genuine the estimate is to be modified, deposited, and the connection installed without delay; otherwise a reasoned speaking order is to be passed.

FACTUAL SUMMARY

Nagendra Singh Gautam applied to the Kanpur electricity company for a house connection. Supply was not given. He approached the Permanent Lok Adalat, Kanpur Nagar (Case No. 05 of 2025), which on 19 May 2025 directed the department to grant the connection on deposit as provided in Clause 4.9 of the U.P. Electricity Supply Code, 2005. The department then issued an estimate of about Rs.59,297, calculated at Rs.70 per square foot rather than the Rs.35 rate recited in the Lok Adalat order.

The licensee said the Code had been amended in January / on 27 February 2025, raising that charge. The petitioner contended that the rate on the date of his application governed, and that the estimate had been issued ex parte. After the writ was filed, the Executive Engineer, Kesko, by order dated 31 October 2025 directed him to deposit the portal estimate immediately so the connection could be installed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

new-connection estimate; application-date rate versus later Code amendment

QUESTION

Will the writ court decide whether Clause 4.9 new-connection charges are the rate on the application date or the rate after a later Code amendment, when that question has not been adjudicated on the estimate?

HOLDING

No. The Court did not decide whether the petitioner is liable at Rs.35 or Rs.70 per square foot. It disposed of the writ by permitting a representation to the Managing Director of the supply company within two weeks; the MD is to decide strictly in accordance with law after notice and hearing within two weeks of receipt. If the grievance is genuine, the estimate is to be modified, deposited, and the connection installed without delay; if not, a reasoned speaking order is to be passed. ¶ 8-9

QUALIFIER

The Court recited Clause 4.9 (अ) (ट) as the Permanent Lok Adalat's deposit formula but did not construe that clause or the February 2025 amendment.

FLAG Source PDF also contains 14.07.2025 (Arindam Sinha and Dr. Y.K. Srivastava JJ.: no reason to interfere with the 19.05.2025 PLA order; adjournment for the licensee to be heard or rectify charges) and 30.10.2025 (Prakash Padia and Vivek Saran JJ.: list 04.11.2025; respondents 2 and 3 to remain present). Application date is internally inconsistent: 12.11.2025 para 3 says 04.09.2024; paras 4 and 8 say 04.09.2025 (para 4 also '04.09.2025'). The 19.05.2025 PLA order is consistent only with an application before that date. Licensee on 14.07.2025 placed the amendment in 'January last'; the 12.11.2025 order dates it 27.02.2025.

A writ challenging a Clause 4.9 new-connection estimate (Rs.35 vs Rs.70 after amendment) is disposed of by directing a representation to the Managing Director, to be decided after notice and hearing, without adjudicating the rate. ¶ 8-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 CHARGES ARE PAYABLE AT RS.35 PER SQUARE FOOT (RATE ON THE APPLICATION DATE / PERMANENT LOK ADALAT ORDER) OR AT RS.70 PER SQUARE FOOT (POST-AMENDMENT)

The petitioner's case was that the 27.02.2025 amendment could not apply to an application made before it. Left to the Managing Director. ¶ 4-9

NOT DECIDED — VALIDITY OF THE 31.10.2025 EXECUTIVE ENGINEER, KESKO DIRECTION TO DEPOSIT THE PORTAL ESTIMATE

Petitioner said the estimate was issued ex parte and the rate question had not been adjudicated. Not decided. ¶ 7-8

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT ORDER DATED 19.05.2025 IS TO BE ENFORCED AS SUCH

The 14.07.2025 Bench said it had no reason to interfere with that order. The 12.11.2025 disposal does not enforce it and instead directs a representation to the MD. ¶ 3